

RAISING POINTS OF ORDER

A point of Order is when you correct a factual inaccuracy.

Therefore when you raise a point of order against a delegate, you ask the Executive Board to determine which fact is accurate. By doing this, the Executive Board has to reaffirm a fact that has been deemed to be accurate.

In Order - The incorrect fact has been pointed out and corrected.

Not in Order - The incorrect fact has either not been pointed out or has not been corrected, or both.

Out of Order - Not within our powers to rule, i.e, it is subject to interpretation.

Everything in red is a Point of Order raised by a delegate.

1. If the fact in question is an absolute/ defined truth -

- a. The delegate stated that “The capital of India is Islamabad.” However the capital of India is actually New Delhi.
- b. The delegate stated that “The current Secretary General of the United Nations is Barack Obama.” This is untrue, the current Secretary General is Ban-ki Moon.

I did two things, point out the factual innacuracy and correct the incorrect fact.

Both of these will be ruled “In Order.”

2. If the fact in question is correct -

The delegate stated that, “the capital of India is New Delhi.” However the capital of India is actually Islamabad.

This will be ruled “Not in Order.”

3. If the fact in question can't be decided by the Executive Board -

- a. The delegate said, “There exists an International Armed Conflict in Syria.” However there is no International Armed Conflict, there is a Non-International Armed Conflict affirmed by the Office of the Prosecutor of the ICTY.

Understand that, both Armed Conflicts have criteria that need to be fulfilled - we can't decide whether the criteria are fulfilled or not, that is subject to the interpretation of the delegates.

Further, there is no authority declaring that there exists an Armed Conflict in any State - the greatest authority we can get, is a Security Council Resolution. So even if it was -

The delegate said, “There exists an International Armed Conflict in Syria.” However there is no International Armed Conflict, there is a Non-International Armed Conflict affirmed by UNSC Resolution xyz.

And we were sitting inside a United Nations body, having the obligation to follow a Security Council Resolution (Art 25, UN Charter), it would still be up to the interpretation of delegates whether the situation has changed since the date of the passage of the Resolution.

b. The delegate said, “R2P exists as Customary International Law.” However R2P does not exist as CIL since it does not satisfy the requirements under Article 38.1.b of the ICJ Statute.

Again, Article 38.1.b of the ICJ Statute has two requirements, and the Executive Board cannot say **as fact** whether the requirements are satisfied or not.

Both of these Points will be ruled “Out of Order” (Not within our powers to rule)

4. If the fact in question is not clearly found within the content of an Article.

The delegate said, “Article 51 recognises the right of self defence against Non-State Actors.” However Article 51, nowhere mentions Non-State Actors.

Three things,

a. It can be interpreted to include Non-State Actors since it is open ended and only specifies “armed attack against a member of the UN” and not by whom the Armed Attack is conducted.

b. It can be interpreted to include Non-State Actors since UNSC Resolution 1373 recognised the right of the USA to exercise the right of self-defence through Article 51 against Non-State Actors.

c. It can be interpreted to include Non-State Actors since Article 51 doesn’t expressly say “Article 51 does not include Non-State Actors” (*Certain Expenses Case of the International Court of Justice*). SO until and unless the Article rejects the idea of Non-State Actors under its ambit, it is considered to include it since it is left open-ended.

This point will be ruled “Out of Order.”

5. If it is not a fact in question at all.

Usage of “must”, “should”, “We/I believe” etc. It becomes an opinion, and not a fact, and you cannot correct an opinion.

This point will be ruled “Out of Order”

6. Logical Fallacies.

Contradictions and logical fallacies cannot be corrected via a Point of Order.

a. The delegate said, “We should attack Russia to make peace with it.” But it is not possible to make peace and attack at the same point in time.

b. The delegate said, “If we starve Ukraine its people will be happy.” But people cannot be happy if they are starving.

These are sound arguments, but no fact was stated and hence no fact can be corrected, it is again the opinion, understandably illogical, of the delegate.

This Point will be ruled “Out of Order”.

7. Incomplete facts.

The delegate said, “UNSC Resolution xyz talks about ceasefire.” However, it also talks about humanitarian corridors.

Here, the fact was understandably incomplete yet not incorrect.

This Point will be ruled “Out of Order”.

8. Non-existence of fact.

The delegate said, “There is a country named xyz.” However there exists no terrorist organisation called xyz.

This ruling is more interesting, the burden of proof here is on the person who named the country - so up till the point that the person does the Point of Order is ruled in favour of the delegate who raises the Point of Order.

However, this is often misused by delegates to keep raising Points of Order like these, some Executive Boards will down-mark you if you consistently raise Points of Order contesting the existence of something and it is in many cases found that the fact is true and does exist.

9. Points in Order

a. The delegate said, “Since the troops are not wearing their State’s insignia/emblems they are not under any obligation during an Armed conflict.”

However, the troops are under an obligation even if they aren't wearing insignia of the State, Article 37 of the Geneva Convention Additional Protocol 1, relating to Perfidy or deception.

b. The delegate said, “The Exclusive Economic Zones of the UK and Norway do not overlap.” However, this is untrue since the Exclusive Economic Zones extend to 200 nautical miles from the coast of the state and UK and Norway’s maritime distance is less than that.

These are some of the interesting Points of Order I have come across, both of these Points have been affirmed by Courts and Commissions, but regardless the first is the existence of an obligation - which

is easy to establish, there always exists an obligation to do/not do something - it depends upon the strength of the obligation.

The second, is an absolute fact; distance, disguised in law.

General Comments:

1. When raising a Point of Order, always substantiate with proof, without proof it won't be ruled in your favour.
2. Don't misuse Points of Order intentionally to disrupt the performance of another delegate, it is highly disrespectful and looked down upon.
3. Don't raise Points of Order which have no real importance, i.e;
4. The delegate said, "Article 1 subclause b" However it is actually 1 subclause c.'It is probable the delegate himself/herself know that they made a mistake in the flow of their speech.
5. Use Points of Order to refute the fundamental argument someone is making to create an actual impact, if Russia defends its troops in Crimea by saying nothing unlawful has been done by Russian troops, raise the Point of order regarding deception - that will defeat the fundamental argument that nothing unlawful is being done.

These are some of the Points of Order I have come across, and I just wanted to share with you my opinion on how to go about Points of Orders.

I really do hope this helps.

Regards,
Agastya Sen.